


IFFCO-TOKIO GENERAL INSURANCE CO. LTD

Regd. Office: IFFCO Sadan, C-1, Distt. Centre, Saket, New Delhi-110017
Corporate Identification Number (CIN): U74899DL2000PLC107621


IFFCO TOKIO Burglary And House Breaking Insurance Policy - Schedule Cum Tax Invoice
UIN: IRDAN106RP0005V01200102

Regd. Office: IFFCO Sadan, C-1, Distt. Centre, Saket, New Delhi-110017, UIN No - IRDAN106RP0005V01200102	Issuing Office: IFFCO TOKIO GEN INSU. CO. LTD., Bhagwan Complex, 1ST Floor, Plot No 214 Zone - I,, M.P. Nagar,,BHOPAL, MADHYA PRA - 462011, GSTIN: 23AAACI7573H1ZK
--	--

Insured	BABULAL AND SONS WAREHOUSE A/C MPWLC		
Client Number	21B58128		
Corresponding Address	PROP USHA SHARMA , VILLAGE BAIN, TEHSIL BHAIKUNDA , NASRULLAGANJ, DISTRICT, SEHORE, MADHYA PRADESH, SE		
	466331 , Madhya Pradesh , INDIA		
	*****627		
	ba*****@gmail.com		
CKYC Number	*****9422		
GSTIN Number	---		
Policy Number	44542154		
Policy Issuance Date	05/06/2026		
SAC Code	997137		
Tax Invoice Number	44542154		
Tax Invoice Date	05/06/2026		
Place of Supply	Madhya Pradesh (23)		
KYC Name		KYC Number	
ITGI UNIQUE IDENTIFIER		VN5XL1IURWW4RV	
PAN Card		*****760Q	
CKYC Number		*****22019422	

Intermediary Name :	Insuredesk Imf Private Limited		
Intermediary Code :	21002760	Tie Up Code:	21006009

Policy Details			
Type of Policy	BURGLARY AND HOUSE BREAKING INSURANCE		
Period of Insurance:	From:	05/06/2026	To: 04/06/2027
Hypothecation Details			
P400 Client ID	Client Name	Loan Account Number	Address
88327171	MPWLC		

Location Sum Insured & Premium	
Location address	Prop Usha Sharma, Village Bain, Tehsil Bhairunda,NASRULLAGANJ, DISTRICT ,SEHORE, MADHYA PRADESH, Sehore, 466331 , Madhya Pradesh, India
Location Description	GOOD HELD IN TRUST ,STORAGE OF RICE/WHEAT/PULSES/DALHAN/FOOD GRAINS OTHER THAN OIL SEEDS (Storage of Non Hazardous Goods)

Occupancy	Storage of Non-hazardous goods subject to warranty that hazardous goods of Category I, II, III, Coir waste, Coir fibre and Caddies are not stored therein. (Materials stored in Godowns & Silos)
------------------	--

Description1	Sum Insured(Rs.)
No items	
Stocks	142,500,000.00
Total Sum Insured	142,500,000.00

Total Sum Insured (All Locations)	142,500,000.00
Floater Stock Sum Insured	

Additional Coverage And Add on Covers	
Additional Coverages	Sum Insured/Limit (Rs.)
Theft	142,500,000.00
RSMD	142,500,000.00
Add on Covers	Sum Insured/Limit (Rs.)
No items	

Clauses
- Market Value Clause - Designation of Property Clause - Pair and Set Clause - Theft Extension - Riot, Strike, Malicious Damage Extension - Agreed Bank Clause

Exclusion
- Sanctions And Limitations Exclusion Clause - Terrorism Damage Exclusion Clause - Communicable Disease Exclusion Clause

Deductible	
Deductible Value	5% of claim amount subject to minimum of Rs.7500
Theft Deductible Value	5% of claim amount subject to minimum of Rs 10000

Premium Details	
Base Premium (Rs.)	391.88
Add On Premium (Rs.)	0.00
Net Premium (Rs.) /Taxable Value	391.88

CESS (%)			
CESS %	0	CESS (Rs.)	0.00

			GST Details	
	CGST	SGST	UGST	IGST
Percentage	9	9	0	0
Amount (Rs.)	35.27	35.27	0.00	0.00
Total GST Amount (Rs.)	70.54	Total Premium Payable (Rs.)	462	

Whether GST is Payable on Reverse Charge Basis- No
We hereby declare that though our aggregate turnover in any preceding financial year from 2017-18 onwards is more than the aggregate turnover notified under sub-rule (4) of rule 48, we are not required to prepare an invoice in terms of the provisions of the said sub-rule.

Disclaimer:

The issuance of this Insurance Policy is subject to satisfactory verification of KYC documentation of the Client/ Policyholder as per IRDAI Master Circular dated 1st August 2022 on AML/ CFT. In case, if any discrepancy is found in KYC Verification of the Client/ Policyholder, it is agreed by the Client/ Policyholder to complete/ rectify the discrepancy found in the KYC documents/information for the generation of CKYC Number, failing which the policy will be considered ineffective/suspended/ cancelled and no claim will be payable under this Insurance Policy.

In witness whereof, the undersigned being duly authorized has hereunder set his/her hand on this policy on

Toll Free : 1-800-103-5499 (24 Hours Toll Free) ;
Other : (0124) 428-5499 ; SMS "CLAIM" to 56161
GST : 23AAACI7573H1ZK
CIN : U74899DL2000PLC107621
Policy issuing office : Delhi Consolidated Stamp Duty deposited
as per the order of Government of National Capital Territory of Delhi

For IFFCO-TOKIO General Insurance Co. Ltd



Authorized Signatory

Policy wordings

This Policy is evidence of the Contract between **YOU** and **US**. The proposal alongwith any written statement(s), declaration(s) of **YOURS** for purpose of this Policy forms part of this contract.

This Policy witnesses that in consideration of **YOUR** having paid the premium for the period stated in the Schedule or for any further period for which **WE** may accept the payment for renewal of this Policy. **WE** will insure **YOUR** properties as specified in the Schedule during the period of Insurance and accordingly **WE** will indemnify **YOU** in respect of events occurring during the Period of Insurance in the manner and to the extent set forth in the Policy, provided that all the terms, conditions and exemptions of this Policy in so far as they relate to anything to be done or complied with by **YOU** have been met.

The schedule shall form part of this Policy and the term "**Policy**" whenever used shall be read as including the "**Schedule**".

Any word or expression to which a specific meaning has been attached in any part of this Policy or of Schedule shall bear such meaning wherever it may appear. **YOUR Policy** is based on information which **YOU** have given **US** and the truth of these information shall be condition precedent to **YOUR** right to recover under this Policy.

DEFINITION OF WORDS

1. **Proposal**

It means any signed proposal by filling up the questionnaires and declarations, written statements and any information in addition thereto supplied to **US** by **YOU** or on **YOUR** behalf.

2. **Policy**

It means the Policy Booklet, the Schedule and any applicable endorsements or memoranda. **YOUR** policy contains the details of the extent of the cover available to **YOU**, what is excluded from the cover and the conditions, warranties on which the Policy is issued.

3. **Schedule**

It means the latest schedule issued by **US** as part of **YOUR** Policy. It provides details of **YOUR** Policy including full description of properties covered which are in force and the period of cover **YOU** have against the properties described.

A Revised Schedule will be sent at each renewal and whenever **YOU** request for a change in the cover.

4. **Sum Insured**

It means the Monetary Amounts shown against any item.

5. **WE/OURS/US**

It means **THE IFFCO-TOKIO GENERAL INSURANCE COMPANY LTD.**

6. **YOU/YOUR**

It means the person(s)/the Company/the entity named as Insured in the Schedule.

7. **Period of Insurance**

It means the duration of the Policy as shown in the Schedule.

8. **Market Value**

It means the Replacement Value of insured property or item as New at the time of Damage or Loss less due allowance for betterment, wear and tear and/or depreciation.

9. **Loss/Lost:**

It means the Damage or Loss.

10. **Excess**

It means the first part of any claim for which **YOU** are responsible. Any Sum Insured/Limit will apply after the Excess has been deducted.

11. **Money**

It means Cash, current coins, Bank and Currency Notes, Cheques, Postal Order, Current postage stamps which are not part of a

collection and luncheon Voucher.

General Conditions

1. Reasonable Precaution and Care of Property:

YOU shall take all reasonable precautions for safety and soundness of Insured Property and to prevent the loss in order to minimise claims. **YOU** must comply with Maker's recommended actions for inspection and maintenance and shall comply all statutory requirements or other regulations and will employ only competent and honest employees.

2. Notice

YOU will give every notice and communication in writing to **OUR** office through which this insurance is effected.

3. Misdescription:

This Policy shall be void and all premium paid by **YOU** to **US** shall be forfeited in the event of misrepresentation, misdescription or concealment of any material information.

4. Changes in Circumstances

YOU must inform **US**, as soon as possible, of any change in information **YOU** have provided to **US** about yourself, the properties insured, location of risk which may affect the insurance cover provided e.g. change of address, period of unoccupancy, security arrangements etc.

YOU must also notify **US** about any alteration made whereby risk of loss/damage is increased. In case of such alteration made and not accepted by **US** in writing, the cover under this policy shall cease.

5. Claim Procedure and Requirements:

Upon happening of an event giving rise or which may give rise to a claim:

- a. **YOU** or **YOUR** authorised representative shall forthwith give notice in writing to **OUR** nearest office with a copy to Policy issuing office with full particulars. A written statement of the claim will be required and a claim form will be provided. This written statement of claim along with supporting documents (estimates, bill and the like) along with particulars of other Insurances covering the same risk must be delivered to **US** at **YOUR** expenses within 14 days of date of Loss.
- b. **YOU** shall lodge a complaint with the Police at the earliest after happening of the incident and take all practicable steps to apprehend the guilty person and recover the property lost.

6. Claim Control and subrogation

WE are entitled to

- a. enter any place where Loss has occurred and deal with salvage but this does not mean that property can be abandoned to **US**.
- b. receive all information, proof of damage and assistance from **YOU** and any other person seeking benefit under the Policy.
- c. take proceedings at **OUR** own expenses and for **OUR** own benefit, but in **YOUR** name or any other person who is claiming or has received benefit, for the purpose of enforcing any rights and remedies or obtaining relief or indemnity from other parties to which **WE** shall be or would become entitled or subrogated upon, to recover any payment made or due under this Policy.

7. Fraud

If any claim under this Policy is fraudulent in any respect with or without **YOUR** knowledge or if any fraudulent means or devices are used by **YOU** or on **YOUR** behalf to obtain any benefit under this Policy, all benefits and rights under the Policy shall be forfeited.

8. Contribution:

If at the time of happening of any loss covered by this Policy, there shall be existing any other Insurance of any nature covering the same property, whether effected by **YOU** or not, then **WE** will pay only rateable proportion.

9. Average

The Insurance under this Policy (except as regards damage done to the Premises as stated in the Schedule) is subject to the following condition of **Average**

1. When the Sum Insured is on a full value basis

If the property insured under this Policy shall at time of Loss be collectively of greater value than the Sum Insured thereon, then **YOU** will be considered as being **YOUR** own Insurer for the difference and shall bear a rateable proportion of loss accordingly. Every item more than one in the Policy, shall be separately subject to this condition.

2. When the Sum Insured is on a first loss basis

If the property insured under this Policy shall at time of loss be collectively of greater value than the total value declared by **YOU**, then **YOU** shall be considered as **YOUR** own Insurer for the difference and accordingly **OUR** liability is restricted to same proportion of the loss as the declared total value bears to the actual total value found out at the time of loss.

10. Cancellation

We may cancel this policy by sending 7 days notice in writing by Regd.A.D. to **YOU** at **YOUR** last known address.

YOU will then be entitled to a pro-rata refund of premium for the unexpired period of this policy from the date of cancellation, which **WE** are liable to repay on demand. **YOU** may cancel this Policy by sending written Notice through Registered A.D. to **US**. **WE** will then allow a refund after the premium based on the following retaining table

Short Period

Period of cover upto	Rate of Annual Premium Rate to be retained
For a period not exceeding 15 days	10% of the Annual rate
For a period not exceeding 1 month	15% of the Annual rate
For a period not exceeding 2 months	30% of the Annual rate
For a period not exceeding 3 months	40% of the Annual rate
For a period not exceeding 4 months	50% of the Annual rate
For a period not exceeding 5 months	60% of the Annual rate
For a period not exceeding 6 months	70% of the Annual rate
For a period not exceeding 7 months	80% of the Annual rate
For a period not exceeding 8 months	90% of the Annual rate
For a period not exceeding 9 months	100% of the Annual rate
For a period exceeding 9 months	The full Annual rate

11. Arbitration

Should any dispute arise between YOU and US on quantum of amount payable (liability being otherwise admitted by US), such dispute will independently of all other questions be referred to the decision of Arbitrator(s) in accordance with statutory provision of the country in force at that time. Further, when any dispute is referable or referred to Arbitration, the making of an award by Arbitrator(s) shall be a condition precedent to any right of action by YOU against US.

12. Disclaimer Clause

If we shall disclaim OUR liability in any claim, and such claim shall not have been made subject matter of a suit in a court of law within 12 months from the date of disclaimer, then the claim shall for all purposes be deemed to have been abandoned and shall not thereafter be recoverable under this Policy.

13. Interest/Penalty

No sum payable under this policy shall carry any interest or penalty.

14. Geographical Scope

The geographical scope of this policy will be India.

15. Renewal Notice:

We shall not be bound to accept any renewal premium or give notice that such is due.

SCOPE OF CONTRACT

16. CONTENTS

Definition: Contents will mean the **property covered** given below

Property Covered	Property Not Covered
1. Property whilst contained in the premises, which includes a. Stock in Trade i.e. YOUR property pertaining to the Business or Occupation. b. Goods held in Trust or commission for which YOU are responsible. c. Furniture, Fixtures, Fittings, Utensils and Appliances in Trade. d. Money in locked Safe. e. All other contents. 2. Premises damaged to be made good by YOU	1. Gold or silver articles, watches or jewellery or precious stones or models or coins or curios, sculptures, manuscripts, rate books, plans, medals, moulds, designs, deeds, bonds, bills of exchange, bank, treasury or promissory notes, cheques, money other than in the locked Safe, securities, stamps, collection of stamps, business books or papers unless specifically insured.

COVERAGE

If the contents belonging to **YOU** or for which **YOU** are responsible at law is damaged by any cause listed under "What is covered", then **WE** will indemnify **YOU** to the extent of value of contents.

What is covered	What is not covered
The ambit of this cover is Loss of or Damage to	WE will not be liable for

contents caused by Burglary and Housebreaking i.e. theft following upon an actual forcible and violent entry of and/or exit from the premises and Hold up and in case of Premises damaged to be made good by **YOU** by Burglary and/or Housebreaking or any attempted threat any time during the period of Insurance.

- i. Any Loss where any other person(s) lawfully in the Premises or any member or inmate of **YOUR** household or **YOUR** business staff or Director is concerned as Principal or accessory in the actual theft or damage to the insured property or premises.
- ii. Loss, which is recoverable under Fire or Plate Glass Insurance Policy or any other policy.
- iii. Loss directly or indirectly, proximately or remotely occasioned by or which arises out of or in connection with Riot and Strike. Civil commotion, Terrorist activities, Earthquake, Flood, Storm, Volcanic Eruption, Typhoon, Hurricane, Tornado, Cyclone or other convulsions of nature or atmospheric disturbance.
- iv. Loss directly or indirectly occasioned by or happening through or in consequence of war, Invasion act of foreign enemy, hostilities (whether war be declared or not), Civil war, rebellion, revolution, insurrection, Military or usurped power, Confiscation, nationalisation, or loot pillage in connection therewith.
- v. Any Loss arising from or in consequence of requisition or destruction by or under order of any Public Authority.
- vi. **a)** Loss to any property whatsoever or any expenses whatsoever resulting or arising therefrom or any consequential loss
b) Any legal liability of whatsoever nature directly or indirectly caused by or contributed to by or arising from ionising radiation or contamination by radio activity from any source whatsoever.
- vii. Damage caused by wear & tear and depreciation.
- viii. Consequential loss of any kind or description including any reduction of market value beyond cost of repair or replacement.
- ix. Loss of Money and/or other property abstracted from safe following the use of key to the said safe or any duplicate thereof belonging to **YOU** unless such key has been obtained by assault or violence or any threat thereof.

SPECIAL CONDITIONS

1. Reinstatement of Sum Insured

Immediately upon the happening of any Loss as described in the Policy, the total Sum Insured and the Sum Insured upon the various description of property which have been lost, shall be reduced by the LOSS or Damage and such reduced sum Insured shall be the limit of **OUR** liability in respect of any further damage occurring during the current period of Insurance unless **WE** give **OUR** consent upon payment of additional premium to reinstate the full Sum Insured.

2. Maintenance of Books and Keys

YOU will keep a complete account/record of Money contained in Safe or Strong room and/or at any other place under lock and key on daily basis. This complete account of money, record shall be deposited in a secured place other than the Safe, strong room and the said place where Money is kept and be produced as documentary evidence for admissibility of the claim under the Policy. The keys of the Safe, Strong room or the said place shall not be left on the premises out of business hours unless the premises are occupied by **YOU** or any of **YOUR** authorised employee in which case such keys if left on the premises shall be deposited in a secure place not in the vicinity of the safe, strong room or the place containing the Money.

3. Indemnity

WE may at **OUR** option reinstate, replace or repair the property or the premises damaged or any part thereof or pay the amount of Loss/damage or may join with any other Insurer(s) in doing so, but **WE** shall not be bound to reinstate exactly or completely but only as circumstances permit and in reasonably sufficient manner and in no case **WE** shall be bound to expend more in reinstatement than it would cost to reinstate such property as it was at the time of occurrence of such damage, nor more than the Sum Insured thereon.

4. Unoccupancy and Transfer of Interest

This Policy shall cease to attach

- a. If the premises shall have been left uninhabited by day and night for seven or more consecutive days and nights while the premises are left uninhabited.
- b. To any property in which **YOU** interest shall pass from **YOU** otherwise than by will or operation of law.

Unless in the every case **OUR** consent to the continuance of the Insurance is obtained and signified on the Policy.

5. Onus of Proof

In any action, suit or other proceedings where **WE** allege that by reason of the above provisions any damage is not covered by this Insurance, the burden of proving that such damage is covered shall be upon **YOU**.

Note:

Following are the wordings of the endorsements/ clauses/ warranties/ extensions. Only those endorsements/ clauses/ warranties/ extensions stands covered which are mentioned on the schedule of the policy. Rest of the endorsements/ clauses/ warranties/ extensions stands deleted for all purposes. The applicable endorsements/ clauses/warranties/ extensions mentioned on the schedule are part of the policy and shall be taken into account for interpretation and determination of coverage and liability under the policy.

BURGLARY & HOUSEBREAKING INSURANCE PREAMBLE

Burglary insurance is one of the most important covers needed by the industry and commerce and quite often the financial institutions insist for this insurance as a system/method of risk management. Social and Economic & Political conditions of the people around play a very important role for insuring this class of criminal offences. These offences are although punishable at law, but monetary losses to individuals &/or industry are quite substantial even though sometimes the offenders are caught by the law enforcing agencies.

Some of the offences, which are covered under the policy, have been defined in the Indian Penal Code (IPC). By and large the Burglary Policy covers similar risks, unless otherwise stated. These offences are:

THEFT

Dishonestly taking away moveable property out of the possession of any person without consent of that person (Section 378 of IPC).

BURGLARY

Taking or carrying away of property from premises:

Following felonious entry/exit by use of violent and forcible means

The presence of visible marks at the place of entry or exit.

HOUSEBREAKING

Committing house trespass by effecting entrance into the house or being in house already for the purpose of committing an offence or having committed an offence. (Section 445 of IPC)

ROBBERY

Voluntarily causing to any person death or hurt or wrongful restraint or fear of instant death or hurt or wrongful restraint in order to commit a theft. (Section 390 of IPC)

DACOITY

When five or more person armed or otherwise jointly commit or attempt to commit a robbery.

LARCENY

Theft committed by a person who has got a right to be in the premises. (This risk should not be covered under a Burglary & Housebreaking policy, particularly for business premises)

SCOPE OF COVER OF BURGLARY & HOUSEBREAKING

This policy covers contents of business & industrial premises against the risk of Burglary & Housebreaking. Following property normally is covered under this policy:

- 1) Stock in trade property of the insured &/or lying in trust &/or on commission for which he is responsible in the event of loss or damage.
- 2) Office Furniture, fixture, fittings, utensils in trade, stationery, books.
- 3) Cash & currency notes properly secured in locked safe. (A separate Money/cash policy is available to cover Cash in transit or kept in the locked safe etc.).
- 4) Electrical and electronic equipment (unless separately insured under an Electronic Policy, which has been designed to cover fire, burglary. Breakdown etc)

PERILS

The policy has been designed to cover:

- 1) Burglary & Housebreaking following upon Felonious entry of the premises by Violent and Forcible means.
- 2) Theft by person(s) in the premises who subsequently break(s) out by violent means and forcible means including Holdup.
- 3) Damage to the premises by the Burglars falling to be made good by the insured.

VARIOUS TYPES OF BURGLARY AND HOUSEBREAKING POLICIES**BURGLARY POLICIES ON FULL SUM INSURED**

In this policy the entire sum insured (excluding fixed assets sum insured) are proposed for insurance.

BURGLARY POLICIES ON FIRST LOSS BASIS

This is exception to the rule of Full Value* burglary policies, under certain special cases policies may be issued on an amount less than the total value of the property subject to a stipulation that the claims will be paid for full amount up to the limit of Sum Insured, without applying the Average Clause.

FLOATING (FLOATER) POLICY

It is permissible to issue a policy to cover more than one location for single sum insured in aggregate on stocks under the policy.

POLICIES ON DECLARATION BASIS

In case of large amount of stock, and to take care of frequent fluctuations in stock/stock values it is permissible to issue policies on declaration basis. Although burglary insurance business is nontariff business, it is desirable to follow the rules and conditions as are applicable under the fire tariff. Similarly policies on Floating Declaration basis on the lines as are applicable under the fire tariff can be issued

EXCLUSIONS

Loss or damage

- 1) Where any inmate or Insured family member or business staff is involved as principal or accessory.
- 2) By acts of persons lawfully on the premises (larceny)
- 3) Consequent upon fire or explosion

- 4) Insurable under fire or Plate Glass insurance policy
- 5) Loss of cash from the safe following the use of the key or duplicate key belonging to the Insured, unless such key has been obtained by threats or violence
- 6) Earthquake or other natural perils
- 7) Riot, strike and civil commotion
- 8) War and kindred perils
- 9) Nuclear perils
- 10) Premises left unoccupied by day and night for seven or more days and nights while the

Additional Clause Wordings

Market Value Clause

Where the Sum Insured is opted on Market Value Basis, We will compensate You the Replacement Cost of the lost or damaged Property as on Date of Loss less due allowance for betterment and depreciation for age, usage and condition of the lost or damaged Property.

Designation of Property Clause

For all purpose of determining, where necessary, the item under which any property is insured, the insurers agree to accept the designation under which the property has been entered in the insured's books.

Pair and Set Clause

Where the purchased item is part of a Pair or Set, the Insured shall be indemnified not more than the value of the particular part lost, damaged or destroyed regardless of any special value that the item may have by way of being part of such pair or set, unless this condition is specifically waived off by Us.

Theft Extension

In consideration of an additional premium paid by the insured (as stated in the policy schedule), the policy provides cover for the theft extension. Theft under the policy means dishonestly taking away moveable property out of the possession of any person without consent of that person (Section 378).

Riot, Strike, Malicious Damage Extension

In consideration of payment of an additional premium the policy is extended to cover Loss of or visible physical damage or destruction by external violent means directly caused to the property insured but excluding those caused by

- a) Total or partial cessation of work or the retardation or interruption or cessation of any process or operations or omissions of any kind.
- b) Permanent or temporary dispossession resulting from confiscation, commandeering, requisition or destruction by order of the Government or any lawfully constituted Authority.
- c) Permanent or temporary dispossession of any building or plant or unit or machinery resulting from the unlawful occupation by any person of such building or plant or unit or machinery or prevention of access to the same.

Agreed Bank Clause

It is hereby declared and agreed:-

i. That upon any monies becoming payable under this policy the same shall be paid by the Company to the Bank and such part of any monies so paid as may relate to the interests of other parties insured hereunder shall be received by the Bank as Agents for such other parties.

ii. That the receipts of the Bank shall be complete discharge of the Company therefore and shall be binding on all the parties insured hereunder.

N.B.: The Bank shall mean the first named financial institution/Bank named in the policy.

iii. That if and whenever any notice shall be required to be given or other communication shall be required to be made by the Company to the insured or any of them in any manner arising under or in connection with this policy such notice or other communication shall be deemed to have been sufficiently given or made if given or made to the Bank.

iv. That any adjustment, settlement, compromise or reference to arbitration in connection with any dispute between the Company and the insured or any of them arising under or in connection with this policy if made by the Bank shall be valid and binding on all parties insured hereunder but not so as to impair rights of the Bank to recover the full amount of any claim it may have on other parties insured hereunder.

v. That this insurance so far only as it relates to the interest of the Bank therein shall not cease to attach to any of the insured property by reason of operation of condition 3 of the Policy except where a breach of the condition has been committed by the Bank or its duly authorised agents or servants and any other party insured hereunder whereby the risk is increased or by anything being done to upon or any building hereby insured or any building in which the goods insured under the policy are stored without the knowledge of the Bank provided always that the Bank shall notify the Company of any change of ownership or alterations or increase of hazard not permitted by this insurance as soon as the same shall come to its knowledge and shall on demand pay to the Company necessary additional premium from the time when such increase of risks first took place.

vi. It is further agreed that whenever the Company shall pay the Bank any sum in respect of loss or damage under this policy and shall claim that as to the Mortgagor or owner no liability therefore existed, the Company shall become legally subrogated to all the rights of the Bank to the extent of such payments but not so as to impair the right of the Bank to recover the full amount of any claim it may have on such Mortgagor or Owner or any other party or parties insured hereunder or from any securities or funds available.

N.B.: In cases where the name of any Central Government or State Government owned and/or sponsored Industrial Financing or Rehabilitation Financing corporation and/or Unit Trust of India or General Insurance Corporation of India and/or its subsidiaries or LIC of India/any financial Institution is included in the title of the Policy as mortgagees the above Agreed Bank clause may be read as the name of such institution in place of the word 'Bank' in the said clause.

Exclusion Wordings

Sanctions And Limitations Exclusion Clause

No insurer shall be deemed to provide cover and no insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that insurer to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

Terrorism Damage Exclusion Clause

Notwithstanding any provision to the contrary within this insurance it is agreed that this insurance excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause or event contributing concurrently or in any other sequence to the loss. For the purpose of this endorsement/warranty; an act of terrorism means an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons whether acting alone or on behalf of or in connection with any organization(s) or government(s), or unlawful associations, recognized under Unlawful Activities (Prevention) Amendment Act, 2008 and any subsequent changes or any other related and applicable national or state legislation formulated to combat unlawful and terrorist activities in the nation for the time being in force, committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public or any section of the public in fear for such purposes.

The warranty also excludes loss, damage, cost or expenses of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing or in any way relating to action taken in respect of any act of terrorism. If the company alleges that by reason of this exclusion, any loss, damage, cost or expenses is not covered by this insurance the burden of proving the contrary shall be upon the insured. In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

Communicable Disease Exclusion Clause

1. This policy, subject to all applicable terms, conditions and exclusions, covers losses attributable to direct physical loss or physical damage occurring during the period of insurance. Consequently, and notwithstanding any other provision of this policy to the contrary, this policy does not insure any loss, damage, claim, cost, expense or other sum, directly or indirectly arising out of, attributable to, or occurring concurrently or in any sequence with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease.

2. For the purposes of this endorsement, loss, damage, claim, cost, expense or other sum, includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test:

2.1. For a Communicable Disease, or

2.2. Any property insured hereunder that is affected by such Communicable Disease.

3. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where:

3.1. The substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or no, and

3.2. The method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and

3.3. The disease, substance or agent can cause or threaten damage to human health or human welfare or can cause or threaten damage to, deterioration of, loss of value of, marketability of or loss of use of property insured hereunder.

4. This Endorsement applies to all coverage extensions, additional coverages, exceptions to any exclusion and other coverage grant(s). All other terms, conditions and exclusions of the policy remain the same.